

80 . Bill September Term 1840 Siddon O Hillyer Adm & c Reuben Breyfogle Rebecca Breyfogle and Thomas Reverand Aaron Eaton Chancery The State of Ohio Delaware County ss Proceedings in Chancery before his Honor Ozias Bowen President of the second Judicial Circuit of Ohio and William G Norris Marshal Griffin and Almon Stark Esquires his associates , Judges of the Court of Common Pleas for said County , sitting at the Court House in the town of Delaware in said County on the thirtieth day of September AD One thousand eight hundred and forty six Be it remembered that heretofore towit on the eighteenth day of May AD One thousand eight hundred and forty in said Complainant by D T Fuller bequin his Solicitor filed in the Clerks office of said Court a Bill in Chancery against said defendants , which will is in the words and figures following to wit To the Court of Common Pleas within and for the County of Delaware , State of Ohio on Chancery sitting : Fidon D Hillyer administrator of the goods and effects which were of Milo & Pettibone deceased , represents that Reuben Breyfogle and Rebecca Breyfogle his wife , whom your Orator prays may be made defendants to this bill , were on the 18th day of August 1842 seized in fee simple of the following described real estate to wit : Situate in the County of Delaware State of Ohio , a tract in the vacated part of the town of Delaware , Commencing 27 feet north of the north east corner of out lot No 22 in said town thence West twelve rods , thence south six and two thirds rods , thence east twelve rods , thence north six and two thirds rods to the place of beginning . Supposed to contain one half acre of ground including the dwelling house . Your orator further represents that on the said 18th day of August 1842 the said Breyfogle and wife by their deed duly executed to said Mills D Pettibone then in full life the above described tract of ground in fee simple , but subject nevertheless to a condition of defense upon the payment of three notes of hand given by one Thomas River (whom your Orator prays may be made deft hereto , to said Mills D Pettibone one for the sum of \$ 50 . dated March 23d 1842 payable 1st of May 1842 with interest : One for \$ 50 . with interest dated March 23d 1842 payable the 1st of October 1842 , and one for \$ 40 . dated March 23d 1842 payable Oct 1st 1843 with interest , as in and by said deed of mortgage on record in the Records Office of Delaware County , Vol . 23 : pages 366.67 and 68 . reference to which record is hereby made , will more fully appear , Your Orator further represents that since the Conveyance of the above described tract of ground to the said Milo D Pettibone the said defendants have conveyed the same to one Peter Reaver who is now in possession of the same (and whom your Orator prays may be also made defendant to this bill) Your Orator further represents that neither of said notes nor any part thereof was paid to said Milo D Pettibone , in his life time , nor since his decease to your Orator at the time limited in that behalf , nor since that time , although often demanded by your Orator as Administrator as aforesaid Your Orator therefore prays that writ of Subpoena may issue against the said defendants : that they may be compelled to answer all and singular the premises that an account may be taken of what may be due your Orator as Administrator as Continued aforesaid on said notes as principal and interest , that said mortgaged premises may be sold and the proceeds thereof applied to the satisfaction of said notes , and that your Orator as administrator as aforesaid may have such other and further relief as equity and good conscience may require D F Fuller Solicitor for Complt And thereupon our writ of subpoena issued to the Sheriff of said County against said defendants in the words and figures following to wit The State of Ohio Delaware

County is To the Sheriff of said County Greeting We command you to summon Reuben Breyfogle Rebecca Breyfogle Thomas Reeve and Aaron Caton to appear before the Honorable the Judges of our Court of Common pleas for said County , at the Court House in Delaware on the first day of our next May term A D 1845 to answer unto a Bill in Chancery exhibited against them by Riton S Hillyer Adm & c , and this they shall in no wise omit under the penalty of One thousand dollars , and have you then there this wick Witness William D Heim Clerk of said Court at the Court House this 11th day of May AD 1846 . Seal . Wm Hein Clerk " --- Upon which writ the Sheriff of said county to whom it was directed made the following return " served by leaving copies of this writ at the residence of the within named defendants except Thomas Reeve who cannot be found us F Horn Shff and thereupon afterwards at the May time of said Court do 1846 this cause continued and now at this day to wit at a Court of Common Pleas aforesaid for the County aforesaid before the Judges aforesaid and at the time and place first herein before mentioned Came the Complainant by his Solicitor and the defendant failing to plead answer order to the Complainant bill , the same is taken as confessed against them . It is therefore ordered adjudged and decreed by the Court that the defendants do within thirty days from this date pay to the Complainant the sum of One Hundred and Seventy two dollars with interest thereon being the amount due upon said mortgaged premises together with the costs herein expended and in default thereof that the Sheriff of this County proceed to sell the mortgaged premises in the bill mentioned and described under the rules and restrictions person by the statute regulating the sales of real estate upon judgments and executions at law , & from the proceeds of said sale to pay Complainant the said sum of One Hundred and seventy two dollars and thirty cents and interest thereon together with the costs of this suit taxed at four dollars and seventy five cents . and it is further Ordered that in case the proceeds of said sale of the mortgaged premises is not sufficient to satisfy this decree that the complainant have execution for the ballance as upon judgment at law - I D Hillyer Adm of M. D. Pettibone deeds as Received of Adam Reaver One Reuben Breyfogle and others Hundred and seventy two dollars and fifty nine cents in full of a decree against said Peyton in Del . Com . Pleas obtained at the September Tenn 1846 Oct 9th 1846 Clerk Heim \$ 1.00 25 P Hillyer Adm of M D Pettibone deeds 1.40 \$ 4.05 Satisfied Oct 9th 1846 1 Stack Shff Horr . 87

Citation:

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